

“Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.” (Code Civ. Proc., § 1033.5(a)(14).) Here, as Defendant points out, the Court requires electronic filing by represented parties. Thus, the filing service fees claimed by Defendant are recoverable. Further, filings such as notices of association of counsel, notices of errata, and notices of change of address are reasonably necessary to the litigation. Thus, the Motion to Tax as to Item 14 is **DENIED**.

Item 15 - Other

Plaintiff seeks to tax \$150.15 in "Other" costs under Line 15 on the ground that Defendant has not shown that these discretionary costs were both reasonably necessary and reasonable in amount and parking, mileage reimbursement, meals, CARFAX vehicle history reports (three separate charges), and document retrieval are not recoverable Code of Civil Procedure section 1033.5(b)(2).

Plaintiff’s argument that section 1033.5(b)(2) expressly precludes costs for travel expenses of attorneys, parking, or meals is incorrect. Section 1033.5(b)(2) precludes “[i]nvestigation expenses in preparing the case for trial.”

While section 1033.5(b)(2) does not preclude travel or parking costs, it does preclude the CARFAX costs, which Defendant concedes were “investigative costs.”

Further, while Plaintiff erroneously cited to section 1033.5(b)(2) for the incorrect proposition, Plaintiff is correct that attorney meal costs and local travel costs are generally not recoverable. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 [“The only meal expenses statutorily allowable are those for jurors while they are kept together during trial and deliberation.”]; *id.* at p. 775 [“Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation.”].)

Thus, the Motion to Tax as to Item 15 is **GRANTED** as to the claimed mile reimbursement, meal, parking, and CARFAX costs. The Motion is **DENIED** as to the remaining other costs.

Moving party to give notice.

5. 30-2025-01527897

209 Group, LLC vs.
Seibert

1. Case Management Conference
2. Motion for Leave to File Amended Cross-Complaint

Defendants Christian Seibert, Osmar Aguilar, and Eisley Creative LLC, hereby respectfully seek this Court’s leave to file a Cross Complaint against Plaintiffs 209 Group, LLC, Novation Productions, LLC and additional party Tom Armbruster.

MP cites to CCP§428.50 as the enabling authority for the relief requested.

Code Civ. Proc., § 428.50

- (a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.
- (b) Any other cross-complaint may be filed at any time before the court has set a date for the trial.
- (c) A party shall obtain leave of court to file any cross-complaint except one filed within time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

		Here, Moving Party attempted to file a Cross-Complaint at the same time as filing their Answer to the Complaint. However, that document was rejected by the Court, thus necessitating this motion. (ROA 17). While the Responding party argues about procedural defects with the Motion, none of these alleged defects prejudice Responding Partys (“RP”). Although the Notice of Motion does not set forth the date, time, and location of the motion in the notice itself (CRC 3.1110(b)), that information is set forth in the Caption on the front page of the motion. Also, although RPs argue no proof of service was attached to the Motion, this Court’s files establish the motion (ROA 27) and exhibit list (including the proposed Cross-Complaint) (ROA 21) were e-served on 2/5/2026 (ROAS 23,25.) As such, the Motion is GRANTED. Proposed Cross-Complaint to be separately filed within 7 days of this order. Moving Party is to give notice.
6.	30-2025-01506656 Martinez vs. Kaufman	1. Case Management Conference 2. Demurrer to Complaint In light of the pending motion to consolidate, motion for leave to file cross-complaint and status conference re: settlement in related case No. 2024-01393434, styled <i>Kaufman v. Martinez</i>, the hearing on this motion is CONTINUED to October 22, 2026 at 1:30 p.m. in Department C34. Clerk to give notice.
7.	30-2024-01415577 Mejorado vs. General Motors, LLC	1. Motion to Strike or Tax Costs 2. Order to Show Cause re: Dismissal on Settled Case Defendant General Motors LLC (“Defendant”) moves to strike or tax certain costs claimed by plaintiffs Eric Mejorado and Elizabeth Mejorado formerly known as Elizabeth Aguilar (“Plaintiffs”), which Defendant argues were not reasonably incurred or necessary in the conduct of the litigation. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) <u>Item 2 – Jury Fees</u> Defendant argues \$154.00 should be taxed because jury fees are only recoverable when a trial occurs and no jury was ever convened in this matter. Defendant cites <i>Perko’s Enterprises, Inc. v. RRNS Enterprises</i> (1992) 4 Cal.App.4th 238 but that case did not involve the recovery of jury fees. Jury fees are expressly recoverable under Code of Civil Procedure section 1033.5(a)(1). Thus, the Motion to Tax as to Item 2 is DENIED. <u>Item 1 – Filing Fees</u> Defendant argues \$93.48 in filing fees associated with Plaintiffs’ Motion to Compel should be taxed because these were optional costs that counsel elected.